

STEVENS, J., concurring in judgment

has proved to be particularly pronounced in voting districts that contain more than about one-third African-American residents. See Pildes, *The Politics of Race*, 108 Harv. L. Rev. 1359, 1382–1386 (1995). There was no need for expert testimony to establish the proposition that “in North Carolina, party registration and party preference do not always correspond.” *Ante*, at 551.

Indeed, for me the most remarkable feature of the District Court’s erroneous decision is that it relied entirely on data concerning the location of registered Democrats and ignored the more probative evidence of how the people who live near the borders of District 12 actually voted in recent elections. That evidence not only undermines and rebuts the inferences the District Court drew from the party registration data, but also provides strong affirmative evidence that is thoroughly consistent with the sworn testimony of the two members of the state legislature who were most active in drawing the boundaries of District 12. The affidavits of those members, stating that district lines were drawn according to election results, not voter registration, are uncontradicted.³ And almost all of the majority-Democrat registered precincts that the state legislature excluded from District 12 in favor of precincts with higher black populations produced significantly less dependable Democratic results and actually voted for one or more Republicans in recent elections.

The record supports the conclusion that the most loyal Democrats living near the borders of District 12 “happen to be black Democrats,” see *ibid.*, and I have no doubt that the legislature was conscious of that fact when it enacted this apportionment plan. But everyone agrees that that fact is not sufficient to invalidate the district. Cf. *ante*, at 551–552. That fact would not even be enough, under this Court’s decisions, to invalidate a governmental action, that, unlike the

³ See App. to Juris. Statement 73a (affidavit of Sen. Roy A. Cooper III, Chairman of Senate Redistricting Committee); *id.*, at 81a–82a (affidavit of Rep. W. Edwin McMahan, Chairman of House Redistricting Committee).